

26PR00244 Matter of the Mary Lou Carlin Chavez Trust

County: santa-barbara

Division: Trust

Department: 4 SM-Cook

Hearing date: 2026-08-10

Motion: Petition to Determine Claim to Property

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Tentative Ruling: Matter of the Mary Lou Carlin Chavez Trust

Case Number

26PR00244

Case Type

Trust

Hearing Date / Time

Mon, 08/10/2026 - 08:30

Nature of Proceedings

Petition to Determine Claim to Property

Tentative Ruling

Probate Notes:

Appearances required.

The following is noted for the Court:

The petition is recommended for DENIAL.

The former trustee substantially complied with Article 5, clause B of the trust, which distributed the "residuary assets" of the trust to the grantor's children "in equal shares," taking into account the death of two of those children and their surviving

issue, which was required by Art. V, cl. B, and which act is protected by the indemnification provision in the trust at Article 13, clause B.

Petitioner's argument can be distilled down to a claim that the specific distributions of cash in Article 5, clause A, must first be made before the residual is distributed. This argument presumes that real property held by the trust must be converted to cash in the absence of sufficient cash held by the trust to satisfy the specific distribution provisions. However, that argument completely ignores the doctrine of ademption when sufficient cash is not available, and does not point to any support within the body of the trust language that would supersede the doctrine of ademption at Probate Code section 21133.

Mary Lou Carlin Chavez ("Settlor") executed the subject trust in 2007. Settlor died in July of 2020. Settlor listed the following 8 children in the trust:

Leandro Carlin Chavez

Pauline Carlin Chavez

Rita Chavez Robinett

Veronica Carlin Cueller

Mike Carlin Chavez

Bebecca Chavez

Gabril Steven Chavez Sr.

Alfred Carlin

According to Article V of the trust, upon the death of Settlor, specific gifts of cash were to be distributed to several persons. (Pet., at ex A, dig. P. 13.) However, according to paragraph 5 in the Petition, "Petitioners are informed and believe that the Trust and the Grantor held no other substantial assets at the time of her death." This fact, coupled with the absence of any clause in the trust instrument that instructs the specific gifts to be met by the sale of other property, means that the specific cash gifts in the trust at Article 5, clause A adeemed. (Prob. Code, §21133.)

It seems the prior trustee understood this fact, and distributed the property in the trust in a manner appropriate to the instructions in Article 4, clause B of the trust. Even if ademption did not apply, the indemnification clause at Article 13 of the trust would protect any of the acts of the former trustee, which were not committed fraudulently or in bad faith. Since there are no allegations that would support a claim of fraud or bad faith, the Petition should be denied.

Judges

Judge Jed Beebe

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